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Case Number: 26NWCP00176 Hearing Date: August 25, 2026 Dept: D

JAMES P. RAMSEY V.
CALIFORNIA TD SPECIALISTS, ET AL.

CASE NO.: 26NWCP00176

HEARING: 08/25/2026 @ 9:30 a.m.

#17

TENTATIVE ORDER

Petitioner James P. Ramsey's
Motion for Preliminary Injunction is GRANTED.

Defendant Mission Hen, LLC,
its agents, representatives, successors and assigns are hereby enjoined and restrained from attempting to evict Petitioner James P. Ramsey from the real property located at 3618 Candor Street, Lakewood, California 90712, pending final disposition of this action.

The Court will determine at
the hearing whether the Court will order Petitioner to post a bond.

Moving party to give notice.

Petitioner James P. Ramsey moves
for a preliminary injunction enjoining Defendant Mission Hen, LLC, its agents, representatives, successors and assigns from any attempts to evict Petitioner from

the real property located at 3618 Candor St., Lakewood, California 90712 ("Property") until the pending real property title action is resolved.

Background

On May 4, 2026, Petitioner James P. Ramsey ("Petitioner") filed a Verified Petition ("Petition") pursuant to Civil Code section 2924.13 naming California TD Specialists ("TD"), Oak West 4, LLC ("Oak West"), Stewart Williams ("Williams"), Asset Management Holdings II, LLC ("AMH"), Mission Hen, LLC ("Mission Hen"), and Does 1 through 100 as "Respondents." The Petition requested the following orders: (1) an immediate order upon the filing of this petition enjoining the May 6, 2026, non-judicial foreclosure pursuant to Civil Code §2924.13(d) and (2) for damages pursuant to Civil Code section 2924.13, subdivision (f) and attorney fees and costs.
The Petition was filed to enjoin a trustee's sale of real property located at 3618 Candor Street, Lakewood, California 90712 ("Property").

The trustee's sale proceeded on May 6, 2026, and resulted in a trustee's deed upon sale to Defendant Mission Hen, recorded on June 2, 2026. On June 16, 2026, Mission Hen filed an unlawful detainer action against Petitioner in the Los Angeles Superior Court, Case No. 26NWUD01040.

Petitioner filed a Verified First Amended Petition ("Amended Petition") on June 18, 2026 seeking an order (1) setting aside the May 6, 2026, nonjudicial foreclosure sale pursuant to Civil Code section 2924.13, subdivision (g), and for damages, (2) wrongful foreclosure and aiding and abetting wrongful foreclosure, (4) declaratory relief, and (5) injunctive relief. On the same day, Petitioner filed an Ex Parte Application for a Temporary Restraining Order to Enjoin Defendant Mission HEN, LLC, Its Agents, Representatives, Successors and Assigns from Attempting to Evict or Evicting Plaintiff Pending Disposition of the Claims to Title of Real Property. The Ex Parte Application was denied on the same day. Petitioner filed another Ex Parte Application on July 8, 2026, which was denied the following day.

On July 13, 2026, Petitioner filed the instant Motion for Preliminary Injunction Enjoining Defendant Mission Hen, Its Agents, Representatives, Successors, and Assigns from Attempting to

Evict or Evicting Plaintiff Pending Disposition of the Claims to Title of Real Property ("Motion"). No opposition has been filed.

On August 13, 2026, TD filed a Declaration of Nonmonetary Status.

Legal Standard

"A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefore." (Code Civ. Proc., §527, subd. (a).) "A preliminary injunction is an interim remedy designed to maintain the status quo pending a decision on the merits." (MaJor v. Miraverde Homeowners Assn. (1992) 7 Cal.App.4th 618, 622.)

Pursuant to Code of Civil Procedure section 526, an injunction may be granted in the following cases:¿

(1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually.

(2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.

(3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.

(4) When pecuniary compensation would not afford adequate relief.

(5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.

(6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings.

(7) Where the obligation arises from a trust.

(Code of Civ. Proc., § 526, subd. (a).)

California courts evaluate two interrelated factors in deciding whether to issue a preliminary injunction: (1) the likelihood that the moving party will prevail on the merits, and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. (White v. Davis (2003) 30 Cal.4th 528, 554; IT Corp v. County of Imperial (1983) 35 Cal.3d 63, 69-70.) The ultimate goal is to minimize the harm that an erroneous interim decision may cause. (Ibid.) These factors operate on a sliding scale: the greater the plaintiff's showing on one factor, the less must be shown on the other, but the court may not grant a preliminary injunction unless there is at least some possibility that the plaintiff will ultimately prevail on the merits. (SB Liberty, LLC v. Isla Verde Assn., Inc. (2013) 217 Cal.App.4th 272, 280.)

"Before issuing a preliminary injunction, the trial court must 'carefully weigh the evidence and decide whether the facts require[] such relief.' [Citation.] The court evaluates the credibility of witnesses and makes factual findings on disputed evidence." (Fleishman v. Superior Court (2002) 102 Cal.App.4th 350, 356.) A court is not precluded from granting a preliminary injunction merely because of conflicts in the evidence. (See National Subscription Television v. Formula International, Inc. (1984) 153 Cal.App.3d 308, 314.) Because a hearing on a preliminary injunction is not a "trial of a question of fact" within the meaning of Code of Civil Procedure section 632, a judge is not required to issue a statement of decision, even on request. (Oiye v. Fox (2012) 211 Cal.App.4th

1036, 1049.)

Analysis

Petitioner's Allegations

According to Petitioner, on February 8, 2026, he and his wife, Elizabeth A. Penaloza ("Penaloza") acquired the Property via Grant Deed, recorded on February 27, 2026, at the Los Angeles County Recorder's Office. As part of the acquisition, Petitioner obtained a purchase money loan in the amount of $640,000 from Long Beach Mortgage Company, which was secured with a Deed of Trust recorded on February 27, 2006, at the Los Angeles County Recorder's Office. Around April 10, 2007, Petitioner obtained a Home Equity Line of Credit ("HELOC") from the now defunct, Green Point Funding, Inc. ("Green Point"), the repayment of which was secured with a Deed of Trust recorded on April 10, 2007, at the Los Angeles County Recorder's Office. As part of this transaction, Penaloza deeded her interest in the Property to Petitioner and the Grant Deed was recorded on April 10, 2007, at the Los Angeles County Recorder's Office. The Green Point HELOC is junior and subordinate to Petitioner's purchase money mortgage under Civil Code section 2924.13, subdivision (a)(3). (Amended Petition, ¶¶9-10.)

After obtaining the HELOC, Petitioner made periodic payments to Green Point through September 5, 2007, but due to financial hardship was unable to make any further payments after September 5, 2007. On October 22, 2007, Petitioner received written notice from Green Point that the HELOC was in default and failure to make payments would result in a foreclosure action. (Am. Pet., ¶11.) However, Green Point did not take any action and continued to send account statements until February 29, 2008. Petitioner alleges that Green Point violated Civil Code 2924.13, subdivision (b)(1) as it stopped sending any account statements after February 29, 2008. More than ten years later, on October 24, 2018, the Green Point Second Deed of Trust was assigned from Mortgage Electronic Registration Systems, Inc. ("MERS") to Assets Recovery 23, LLC ("Assets Recovery") and the assignment was recorded on October 24, 2018. (Id. at ¶¶11-12.) The Green Point Second Deed of

Trust was assigned a second time to Avail Holding LLC (“Avail Holding”), recorded on November 14, 2018, and a third time to Oak West, recorded on August 25, 2025. (Id. at ¶¶13-14.)

On December 3, 2025, Oak West, through its trustee California TD Specialists (“TD”) initiated nonjudicial foreclosure under the Green Point Second Deed of Trust with the recording of Notice of Default and Election to Sell Under Deed of Trust. (Am. Pet., ¶15.) Attached to the NOD was a Certificate of Compliance with Civil Code section 2924.13, executed by Defendant Williams, General Manager of Defendant AMH, which allegedly intentionally misrepresented the compliance history of the Green Point HELOC. On March 9, 2026, Oak West, through its trustee TD recorded a Notice of Trustee's Sale, which was postponed to May 6, 2026. On May 4, 2026, Petitioner filed the instant Petition seeking to enjoin the Trustee’s Sale and Petitioner’s counsel emailed an unconfirmed copy of the Summons, Petition, and Civil Case Cover Sheet to TD and Oak West’s counsel, requesting a postponement of the May 6, 2026, Trustee’s Sale to prevent a wrongful foreclosure. On May 6, 2026, the Trustee’s Sale proceeded despite Petitioner’s multiple requests for a postponement and Petitioner’s counsel’s appearance at the location of the Trustee’s Sale announcing the lawsuit to prospective bidders. On June 2, 2026, the Trustee’s Deed Upon Sale was recorded at the Los Angeles County Recorder’s Office reflecting a conveyance from TD to Defendant Mission Hen. On June 10, 2026, a Three-Day Notice to Quit was posted on the front door of the Property. (Id. at ¶¶15-23.)

On June 16, 2026, Mission Hel filed an unlawful detainer action entitled Mission Hen, LLC v. James P. Ramsey, Case No. 26NWUD01040, in the Los Angeles Superior Court, seeking to evict Petitioner from his primary residence. (Motion, p. 12.)

Preliminary Injunction

Petitioner moves for a preliminary injunction enjoining Defendant Mission Hen, LLC, its agents, representatives, successors and assigns from any attempts to evict Plaintiff from the Property, which serves as Petitioner’s and his family’s primary residence, until the pending real property title action is resolved.

The Court finds that a preliminary injunction may be granted pursuant to Code of Civil Procedure section 526, subdivision (a)(1) and (a)(2) to stay eviction proceedings pending the resolution of a title action or to consolidate the actions. (Asuncion v. Superior Court (1980) 108 Cal.App.3d 141, 146-147.)

Likelihood of Success on the Merits

The Court finds that Petitioner has demonstrated a likelihood of success on the merits as there is a reasonable possibly that Petitioner will prevail on his claims. (Butt v. State of California (1992) 4 Cal.4th 668.)

First, according to Civil Code section 2924.13, subdivision (g), “[a] borrower may petition the court to set a nonjudicial foreclosure sale aside when a certification required by subdivision (c) was never recorded or when a certification recorded pursuant to subdivision (c) indicates that the mortgage servicer engaged in an unlawful practice described in subdivision (b) or misrepresented its compliance history.” Here, Petitioner claims that the Certificate of Compliance recorded by Oak West intentionally misrepresented the servicer’s compliance history when it stated that there were no violations of Civil Code section 2924.13, as the servicer did engage in unlawful conduct described in section 2924.13, subdivisions (b)(1), (b)(2), (b)(3), and (b)(6). These sections address subordinate mortgages and provide, among other things, that a mortgage servicer engages in an unlawful practice when it fails to provide the borrower with written communication regarding the loan for at least three years, fails to provide required transfer notices, or fails to provide required periodic account statements. The Court finds that the Amended Petition presents sufficient allegations regarding such unlawful conduct, including the servicer’s failure to communicate regarding the loan or provide periodic account statements for more than 10 years.

Second, pursuant to Civil Code section 2924.13, subdivision (d), “[u]pon a borrower’s petition to the court for relief before the foreclosure sale, the court shall enjoin a proposed foreclosure sale pursuant to a power of sale in a subordinate mortgage until a final determination on the petition has been made.” Here, Petitioner filed his original petition on May 4, 2026, seeking an order immediately enjoining the May 6, 2026, nonjudicial foreclosure sale. However, the Court did not rule on the Petition. Moreover, despite having actual knowledge of the Petition, the foreclosing party, Defendant Oak West, and the successful bidder, Defendant Mission Hen, who allegedly share the same address and same counsel, proceeded with the nonjudicial foreclosure sale.

The Court finds that Petitioner has demonstrated that he could reasonably prevail on his claims asserted in the Amended Petition.

Balance of Interim Harm

The Court finds that Petitioner will suffer irreparable harm if Mission Hen is permitted to evict Petitioner from his home of more than twenty years before the title claims are resolved. The Property is Petitioner’s primary residence, and eviction would remove him and his family from the Property before the Court can adjudicate the validity of the foreclosure sale and Petitioner’s claims under Civil Code section 2924.13. In contrast, Mission Hen will not suffer harm from a stay of the eviction proceedings pending adjudication of the Petitioner’s title claim. Petitioner is currently making timely payments on the purchase money mortgage, including impounds for real property taxes and insurance, and states that he will continue to do so. Thus, the balance of interim harm weighs in favor of Petitioner and outweighs any harm from maintaining the status quo.

Given that Petitioner has demonstrated the likelihood of success on the merits of his claims under Civil Code section 2924.13 and the balance of interim harm weighs strongly in his favor, the Court grants Petitioner’s motion for preliminary injunction.

Bond

A preliminary injunction ordinarily cannot take effect unless and until the plaintiff provides an undertaking for damages which the enjoined defendant may sustain by reason of the injunction if the court finally decides that the plaintiff was not entitled to the injunction. (Code Civ. Proc., §529, subd. (a); California Rules of Court, rule 3.1150(f); City of South San Francisco v. Cypress Lawn Cemetery Assn. (1992) 11 Cal.App.4th 916, 920.) “The amount of bond is fixed by the judge, exercising sound discretion, based on the probable damage the enjoined party may sustain because of the injunction.” (Hummell v. Republic Fed. Savings & Loan Assn.¿(1982) 133 Cal.App.3d 49, 51.) “Within five days after the service of the injunction, the person enjoined may object to the undertaking. If the court determines that the applicant’s undertaking is insufficient and a sufficient undertaking is not filed within the time required by statute, the order granting the injunction must be dissolved.” (Code Civ. Proc., §529, subd. (a).)

Here, the moving papers do not address the issue of the undertaking and there is no opposition to the Motion.

Because Defendant failed to file an opposition, the Court shall consider Defendant to have waived or forfeited the right to a bond pursuant to Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729. The Court also takes into consideration that Petitioner, pursuant to the declaration filed by Petitioner, is currently making timely payments on the purchase money mortgage, including impounds for real property taxes and insurance, and states that he will continue to do so. Under theses specific circumstances, the Court declines to order posting of a bond by Petitioner unless and until a sufficient record is made by Defendant requesting such a bond be posted by Petitioner and Petitioner provides an undertaking for damages which the enjoined defendant may sustain by reason of the injunction if the court finally decides that the plaintiff was not entitled to the injunction.

Conclusion

Petitioner James P. Ramsey’s Motion for Preliminary Injunction is GRANTED.

Defendant Mission Hen, LLC, its agents, representatives, successors and assigns are hereby enjoined and restrained from attempting to evict Petitioner James P. Ramsey from the real property located at 3618 Candor Street, Lakewood, California 90712, pending final disposition of this action.

The Court will determine at the hearing whether the Court will order Petitioner to post a bond.